

**AUTHORIZATION AGREEMENT FOR DIRECT DEPOSIT (ACH CREDIT) AND DIRECT PAYMENTS
(ACH DEBITS)**

DEFINITIONS:

AFS: Alternative Funding Solutions LLC

Seller: _____
(Merchant's Legal Name)

Merchant Agreement: Merchant Agreement between AFS and Seller, dated as of _____

Designated Checking Account:

Bank Name: _____ **Branch:** _____

Tax ID: _____

ABA: Routing: _____ **DDA: Account:** _____

Capitalized terms used in this Authorization Agreement without definition shall have the meanings set forth in the Merchant Agreement. By signing below, Seller attests that the Designated Checking Account was established for business purposes and not primarily for personal, family or household purposes. **This Authorization Agreement for Direct Deposit (ACH Credit) and Direct Payments (ACH Debits) is part of (and incorporated by reference into) the Merchant Agreement. Seller should keep a copy of this important legal document for Seller's records. Merchant agrees that AFS may use a third-party entity in connection with servicing this Merchant Agreement, including to disburse funds to merchant in connection with the purchase of receivables, and including to debit merchant's bank accounts.**

DISBURSEMENT OF ADVANCE PROCEEDS. By signing below, Seller authorizes AFS and/or its parent entities or affiliates, to disburse the Advance proceeds less the amount of any applicable fees upon Advance approval by initiating ACH credits to the Designated Checking Account, in the amounts and at the times specified in the Merchant Agreement. **By signing below, Seller also authorizes AFS and/or its parent entities or affiliates, to collect amounts due from Seller under the Merchant Agreement by initiating ACH debits to the Designated Checking Account, as follows:**

In the amount of: \$ _____

(Or) Percentage of each Banking Deposit: _____ N/A %

On the Following Days: One-Time Fee

If any payment date falls on a weekend or holiday, I understand and agree that the payment may be executed on the next business day. If a payment is rejected by Seller's financial institution for any reason, including without limitation insufficient funds, Seller understands that AFS may, at its discretion, attempt to process the payment again as permitted under applicable ACH rules. Seller also authorizes AFS to initiate ACH entries to correct any erroneous payment transaction.

MISCELLANEOUS. AFS is not responsible for any fees charged by Seller's bank as the result of credits or debits initiated under this Authorization Agreement. ACH Processor is a third party utilized to facilitate ACH processing. Third party is not part of the loan transaction thus the merchant and lender shall hold harmless from any liability. The origination of ACH debits and credits to the Designated Checking Account must comply with applicable provisions of state and federal law, and the rules and operating guidelines of NACHA (formerly known as the National Automated Clearing House Association).

This Authorization Agreement is to remain in full force and effect until AFS has received written notification from Seller at the address set forth below at least 5 banking days prior of its termination to afford AFS a reasonable opportunity to act on it. The individual signing below on behalf of Seller certifies that he/she is an authorized signer on the Designate Checking Account. Seller will not dispute any ACH transaction initiated pursuant to this Authorization Agreement, provided the transaction corresponds to the terms of this Authorization Agreement. Seller requests the financial institution that holds the Designated Checking Account to honor all ACH entries initiated in accordance with this Authorization Agreement.

Seller: _____
(Merchant's Legal Name)

Title: _____ **Owner**

Date: _____

X: _____
(Signature)

Print Name: _____

Title: _____ **Co-Owner**

Date: _____

X: _____
(Signature)

Print Name: _____

Title: _____

Date: _____

X: _____
(Signature)